

Court No. - 48

Case :- WRIT - C No. - 13176 of 2022

Petitioner :- KPB Metals Private Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Chandra Kumar Rai, J.

Heard Shri B.C. Rai, and Shri Mayank Kumar Agrawal, learned counsel for the petitioner; learned Standing Counsel for the State and Shri Rajesh Yadav, learned counsel for Paschimanchal Vidyut Vitran Nigam Ltd.

By means of present writ petition, the petitioner has prayed for quashing impugned order/letter dated 19.04.2022 issued by the third respondent/Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd, Electricity Distribution Division-I, Bijnor (Annexure no.9 to the writ petition) whereby, he has declined to grant permission to the petitioner company to use the electricity line for Rolling Mill covering the area of adjoining plot no.266 situated at Nagina Road, Bijnor and further issue direction commanding the third respondent not to give effect to the impugned order/letter dated 19.04.2022.

The petitioner (KPB Metals Private Limited) is a company duly incorporated under Sections 7(2) and 8(1) of the Companies Act 2013 read with Rule 18 of the Companies (Incorporation) Rules 2014 with Registrar of Companies, Central Registration Centre, New Delhi. In the year 2021 the petitioner company undertook the activity to establish new Rolling Mill. It has obtained a piece of land bearing Khasra nos.266, 265, 267M situated at revenue Village Behda, Nagina Road, District Bijnor on lease for a period of 30 years for establishing an industrial unit/rolling mill. The lease agreement of Khasra Nos.266 & 265 was registered in the office of Sub Registrar, Bijnor on 25.1.2022, whereas the lease agreement of Khasra no.267M was registered on 27.07.2021. Thereafter the petitioner purchased building, plant and machinery, current assets through registered sale deed on 25.01.2022 for a sale consideration of worth of Rs.8,55,00,000/-, out of which Rs.7,89,63,642/- was received and remaining amount of Rs.65,36,358/- was agreed to be paid within three months. On 16.11.2021, the petitioner company made a requisition, under Section 43 of the Electricity Act 2003 for procurement of 3000 KVA electrical load at Khasra nos.265 and 267M, which was approved by the second

respondent on 10.01.2022. On 27.1.2022 the third respondent has conveyed terms and conditions letter dated 27.1.2022 for release of 3000 KVA load requiring the petitioner to pay Rs.82,12,546/- for release of new connection. The petitioner moved an application on 25.2.2022 seeking permission to use the electricity line for rolling mill covering the area of adjoining plot. By the impugned order dated 19.4.2022 the third respondent has declined to grant the permission on the ground that change in site of the sanctioned load is not permissible.

Learned counsel for the petitioner submits that the impugned order dated 19.04.2022 is unsustainable in view of the notification of the Central Government dated 31.12.2020 issued in exercise of powers conferred by sub-Section (1) read with clause (z) of sub-section (2) of Section 176 of Electricity Act, 2003 (Act 36 of 2003). He has placed reliance on Rule 2 (1) (b) of the Electricity Act, 2003 which defines applicant, 2(1)(k) which defines occupier. Section 3 deals with right and obligations whereas Section 4 deals with release of new connection and modification in existing connection. Reliance has also been placed on the judgement and order dated 02.09.2011 passed by Hon'ble Apex Court in ***Civil Appeal no.7572/2011 (Chandu Khamaru (Sri) vs. Smt. Nayan Malik and others 2011 (6) AWC 5411 (SC)***. In this backdrop, he submits that the order impugned is per-se unsustainable.

Before proceeding in the matter, Shri Rajesh Yadav, learned counsel for the respondent states that some reasonable time may be extended so that appropriate instructions may be obtained in the matter.

Request made is accepted.

Put up as fresh on 24.05.2022 before appropriate Court. Needless to say that meanwhile respondents are at liberty to revisit the matter in view of the above submissions but certainly with co-operation of the petitioner-company.

Order Date :- 7.5.2022

A. Pandey

Court No. - 21

Case :- WRIT - C No. - 13176 of 2022

Petitioner :- Kpb Metals Private Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

Learned counsel for the respondent electricity department Sri Rajesh Yadav prays for and is granted two weeks' time to file counter affidavit. The petitioner will have two weeks thereafter to file rejoinder affidavit.

List as fresh on 6.07.2022.

(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.5.2022

SL

Court No. - 21

Case :- WRIT - C No. - 13176 of 2022

Petitioner :- Kpb Metals Private Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Sri Pranjal Mehrotra has accepted appearance on behalf of Respondents no. 2 and 3. He prays for and is granted two weeks' time to complete his instructions and file counter affidavit.

List as fresh on **25.07.2022**.

When the matter is listed next, name of Sri Pranjal Mehrotra shall be shown as counsel for respondents no. 2 and 3.

Order Date :- 6.7.2022

Kirti

(Dr. Y.K. Srivastava, J) (Manoj Kumar Gupta, J)

Court No. - 21

Case :- WRIT - C No. - 13176 of 2022

Petitioner :- Kpb Metals Private Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra, Rajesh Yadav

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Sri Pranjal Mehrotra, learned counsel for the respondent-Corporation submitted that earlier in the adjoining premises M/S Parmarth Iron Pvt. Ltd. was having electricity connection of 3000 KVA load and there are electricity dues against the said firm and this is an additional reason why the petitioner cannot be permitted to extend the existing connection to the adjoining premises.

We find that there is no such specific plea in the counter affidavit.

Learned counsel for the respondent-Corporation seeks time for filing supplementary counter affidavit, which is allowed.

The petitioner will have a week thereafter to file rejoinder affidavit.

List as fresh on 24th August, 2022.

Order Date :- 3.8.2022

Pratima

(Dr.Y.K.Srivastava,J.) (Manoj Kumar Gupta, J.)

Court No. - 29

Case :- WRIT - C No. - 13176 of 2022

Petitioner :- Kpb Metals Private Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra, Rajesh Yadav

Hon'ble Manoj Misra, J.

Hon'ble Vikas Budhwar, J.

Sri Mayank Kumar Agrawal, learned counsel for the petitioner, submits that a supplementary rejoinder affidavit has been filed on 13.09.2022.

Sri Pranjal Mehrotra, who appears for the respondent-Corporation, states that he wishes to file a reply to the supplementary rejoinder affidavit as various new grounds have been taken therein.

Let this matter be listed on 13.10.2022, as fresh. In the meantime, supplementary rejoinder affidavit shall be traced out and placed on record. The respondents may also file reply to the same if they are so advised.

Order Date :- 20.9.2022.

Rks.

Court No. - 29

Case :- WRIT - C No. - 13176 of 2022

Petitioner :- Kpb Metals Private Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra, Rajesh Yadav

Hon'ble Manoj Misra, J.

Hon'ble Vikas Budhwar, J.

An additional rejoinder affidavit annexing therewith certain documents has been filed today, which is taken on record.

Sri Pranjal Mehrotra, who appears for the second and third respondents, prays for opportunity to seek instructions on the same.

Put up, as fresh, on Thursday i.e. 20th October, 2022.

Order Date :- 13.10.2022

AKShukla/-

Court No. - 29

Case :- WRIT - C No. - 13176 of 2022

Petitioner :- Kpb Metals Private Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra, Rajesh Yadav

Hon'ble Manoj Misra, J.

Hon'ble Vikas Budhwar, J.

1. We have heard Sri Bidhan Chandra Rai for the petitioner; learned Standing Counsel for the Respondent No.1; and Sri Pranjal Mehrotra for Respondents 2 and 3.

2. For its plant site at Khasra no.267 M, village Baheda, Nagina Road, Bijnore, the petitioner was sanctioned 3000 KVA load electricity connection. Thereafter, on 25.1.22, the petitioner acquired two other plots, namely plot no. 266 and 265. Pursuant thereto, by application dated 25.2.2022, the petitioner requested the Executive Engineer, Electricity Distribution Division-I, Pashchimanchal Vidyut Vitran Nigam Limited, Bijnore to allow the petitioner to use the connection provided earlier for additional plot nos. 266 and 265. This application was rejected by the impugned order dated 19.4.2022 passed by the Executive Engineer, Electricity Distribution Division-I, Pashchimanchal Vidyut Vitran Nigam Limited, Bijnore.

3. A perusal of the impugned order dated 19.4.2022 would reflect that the permission sought by the petitioner to utilize the electricity connection for additional plots was not acceptable under Clause 4.8 (d) of the U.P. Electricity Supply Code, 2005 (for short 2005 Code).

4. Questioning the rejection of its application, the learned counsel for the petitioner contended that the sanction order dated 10.1.2022, sanctioning 3000 KVA load connection, is in respect of running a rolling mill at site Baheda, 10 KM, Nagina Road, Bijnore and not in respect of any specific plot; the petitioner is a Company having a composite plant located across several plots of land in a common site therefore, internal changes with regard to the usage of electricity within the same premises is permissible under Clause 4.45 (c) of the 2005 Code. It has been submitted that Clause 4.8(d) is in respect of change in site of the consumer for whom the load is sanctioned and relates to a new connection as would appear from the title of the concerned clause of 2005 Code. It has also been argued that since the connection has been accorded to the petitioner-

company for running a rolling mill at a place where the petitioner-company has its works, the order impugned of the Respondent no.3 is wholly arbitrary and unreasonable.

5. Sri Pranjal Mehrotra, who appears for Respondents 2 and 3, has submitted that Clause 4.45 of the 2005 Code applies to a case where there are changes inside the same premises; it is not applicable to a case where the premises itself changes. In such circumstances, it was argued, the Respondent no.3 was justified in placing reliance on the provisions of sub-clause (d) of Clause 4.8 of the 2005 Code to reject the prayer of the petitioner. He also submitted that the petitioner can always apply for a fresh connection for the new premises or he may seek disconnection of the existing connection and apply for a fresh connection in respect of the entire premises.

6. Having noticed the controversy and the rival submissions in respect thereof, before we proceed to assess the respective weight of the submissions made, it would be apposite to notice the relevant provisions of the 2005 Code which have been cited before us.

7. Clause 4.8(d) of the 2005 Code, which has been relied upon by the third respondent to reject the application of the petitioner, reads as follows:-

"4.8 New Connection where Extension of Distribution Mains or Commissioning of New Sub-Station / Enhancement of capacity of sub-station is required.

(a) ...;

(b) ...;

(c) ...;

(d) (i) Change in site of the sanctioned load will not be permitted.

(ii) Change in purpose of use of power within same tariff schedule shall be permitted.

(iii) If the applicant opts for lesser load than the sanctioned load before signing of agreement, the agreement for the same shall be executed accordingly and the sanction of surrendered load shall stand forfeited."

8. Clause 4.45(c), which has been relied by the learned counsel for the petitioner, reads as follows: -

"4.45 (A) Procedure in Case of Change in Wiring and / or Apparatus or Shifting of Service Line in the Premises of the Consumer:

The consumer may apply to the licensee for any changes in their premises

related to wiring / apparatus / service line, after clearing all dues pending, if any, provided the same are not stayed by any court, subject to the following:

(a) ...;

(b) ...;

(c) In other cases, if the consumer desires to alter the wiring on his premises, or change the location of meter or other related apparatus or shift the service line on his premises notice thereof shall be sent in writing with the modified wiring diagram and other necessary details to the Licensee. The Licensee shall after due enquiry grant approval, with or without modification to the proposal, or reject the request stating reasons thereof, in writing, within 15 days."

9. The term 'premises' has been defined in sub-clause (ss) of Clause 2.2 of 2005 Code as follows: -

"2.2 In this Code, unless it is repugnant to the context:

....

(ss) "Premises" means the area / portion of the building / shed / field etc., for which, the electric connection has been applied for or sanctioned for a single consumer."

10. A conjoint reading of Clause 4.45(c) and Clause 2.2(ss) would suggest that sub-clause (c) of Clause 4.45 would apply to a case where there is change related to wiring /apparatus/ service line within those premises for which connection has been accorded.

11. It is noteworthy that in the application of the petitioner for supply of energy, which is at page-81 of the paper-book, the electric connection has been applied for Khasra no. 267M, village Baheda, Nagina Road, Bijnore.

12. In such circumstances, the premises for which the connection was sanctioned would, as per the definition of 'premises' vide sub-clause (ss) of Clause 2.2 of the U.P. Electricity Supply Code, 2005, be Khasra No. 267M, village Beheda, Nagina Road, Bijnore.

13. The contention of the learned counsel for the petitioner that plot no. 265, 266 and 267M, being contiguous to each other, would fall in one premises that house the rolling mill is not acceptable for the applicability of Clause 4.45(c) of the 2005 Code because from the own application of the petitioner dated 25.2.2022, at page-96 of the paper-book, the additional two plots were obtained through an instrument which was registered on 25.1.2022 i.e, after the sanction of the electricity

connection.

14. In view of the analysis above, we are satisfied that the third respondent was justified in invoking the provisions of Clause 4.8(d) of the U.P. Electricity Supply Code 2005 to reject the application of the petitioner.

15. The petition is **dismissed**.

Order Date :- 2.11.2022

N.S.Rathour